Brazoria County District Court

Cause No. 2025-CV-0023

Tyler Willis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-12-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies every material allegation and asks that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that it would not otherwise bear, Defendant asserts the followig affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Unedr Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff, and Plaintiff may be barred from recovery if that percentage exceeds fifty percent.

Second, the collision occurred at low speed and the damages claimed were not proximately caused by the collision. Defendant denies that the impact was sufficient to cause the injuries alleged, and states that some or all of the claimed conditions pre-existed the collision or arose from unrelated causes.

Third, Plaintiff has failed to mitigate dmaages by failing to follow reasonable medical advice, to attend recommended treatment, or to take reasonable steps to reduce the losses claimed. Any recovery must be reduced accordingly.